EnergyWave

CONFIDENTIAL — DRAFT — FOR DISCUSSION · NOT LEGAL ADVICE

What is formed, what is filed, what counsel has said. In that order, and nothing more.

Recorded facts come first and are tied to a located document. Counsel's statements are quoted from the dated original and are not restated more strongly than written. Everything else is open. This page is not legal advice and does not certify any current docket or registry state.

1 · ENTITIES AS THEY STAND

Entity	Form	What the record shows	Status
EnergyWave, Inc.	Delaware C-corporation (intended)	Counsel (Trinh Truong, K&L Gates) quoted ~$2,800 on 5 Oct 2026 for reviewing "the current EnergyWave DE entity" and preparing bylaws, certificate of incorporation, organizational consent and SS-4; four confirmations requested (sole shareholder; CEO / Secretary / CFO; authorized and issued shares; C-corp rationale); "The October 14 deadline should be no issue if we can finalize the details needed to form the entity quickly." No certificate or file number is in the package. On 14 Oct 2026 the founder stated the entity is **"not formed"** (S-38); on 15 Oct 2026 he stated that K&L Gates is handling the entity work (S-44) — counsel's responsibility, which does not itself evidence completed formation.	OPEN — D3
McLean Capital Development LLC	Wyoming LLC, Filing ID 2025-001612265	Filed 12 Feb 2025; Active, Current, good standing after reinstatement 12 June 2026 (registry lookup 8 Oct 2026). Secretary's certificate of 23 June 2026: Ian Franklin McLean holds 100% of membership interests, President and Sole Member. Applicant of record for xTech Search 10.	VERIFIED
McLean Companies LLC	California LLC (founder's existing company)	Letterhead on the August 2026 white paper; working mailbox ian@mcleancompanies.com; the raise model treats it as transitional service provider with a reimbursement and assignment agreement still to be written.	PARTIAL

Entity	Form	What the record shows	Status
GovThink Institute	501(c)(3), proposed	**Not filed, and no formal tie to EnergyWave** (founder's statement, 14 Oct 2026, S-38). Counsel package (Aug 2026, v1.0) is client-prepared input, not attorney text: proposes an independent-majority board, conflict policy, no preferential access or IP flow to EnergyWave, evaluation on equal published terms. It records that an EIN had not yet been obtained and leaves directors, state and budget open; current incorporation, EIN, exemption-application and determination status are not established in the reviewed evidence. Page 8 assumes EnergyWave is formed; page 18 asks to confirm it. Domain in the package is govthink.org; the founder refers to govthink.com.	OPEN
"EnergyWave Inc." (1988), Delaware file #2149394	unrelated prior entity?	The founder asked counsel to investigate whether it is connected to him; ownership is not asserted.	OPEN

> **Financing status (founder, 15 Oct 2026, S-44).** No SAFE has been executed and no funding has been raised. The September workbook's "Pre-seed SAFE(s) and terms — Have" entry (DD_Checklist!E10) is preserved in the pinned file as a dated conflict. The 9 Oct 2026 record of ≈ $10,000 raised including founder contributions stands as a dated statement; the reconciliation basis is **[TBD]**.

2 · THE PROVISIONAL FILING — RECORDED FACTS

Fact	Support
U.S. Provisional Application No. **63/763,998**, filing date **27 February 2025**, filed by the founder	Indexed provisional record, 9 pp (SHA-256 20552462…bc12): reproduced USPTO missing-parts notice (p. 5) and updated filing receipt mailed 24 June 2025 (p. 8).
The description filed appears to be a ~220-word essay on "asymmetrical regauging" that defines no device	Sources check, 5 Oct 2026 (S-16): embedded Patent Center upload feedback identifies the file; to confirm against the Patent Center document list.
A provisional is not examined and becomes abandoned no later than twelve months after filing	USPTO receipt text, p. 8.
The record's own index: "None claiming this provisional that I know of"	p. 1 — a statement of personal knowledge, not a docket search.

3 · WHAT PATENT COUNSEL SAID — VERBATIM, DATED

#	Dennis Majewski, K&L Gates, 5 October 2026
1	"As you noted, the provisional expired after February 27, 2026. Since a non-provisional was not filed within the 1 year pendency period, it will not be possible to rely on the provisional filing for a priority claim."
2	"The emailing of the concepts to inventors and others is not a publish disclosure. However, the website is considered a public disclosure. Any material that has been publicly available for more than a year cannot form the basis for a patent application."

#	Dennis Majewski, K&L Gates, 5 October 2026
3	“Since the project is at the concept stage, it is very likely that you have not conceded much from the patent side. It is not possible to patent concepts. Instead, patents focus on how an invention operates or theoretically operates. This involves fairly detailed descriptions of the mode of operation and the key components involved in carrying out the operations. It doesn’t appear any of this has been developed or disclosed.”
4	“Attached is a sample invention record form. Regarding pricing, we can file a coversheet provisional application for $2,000, which covers some app and claim prep. The cost to prepare a non-provisional application depends on the number of embodiments and length of the application. Typical ranges are between $10k to $20k.”
5	“We would file the application in the name of the inventors, then later assign to the company after it is formed.”

On 29 September 2026 the same counsel confirmed the firm had filed no patent applications and had received no technical information for a filing, and that a domain and know-how assignment agreement can be prepared after EnergyWave is formed. No current Patent Center docket has been obtained. No later fee-authorization or filing evidence is included in this package; current authorization and filing status are not established. On 14 Oct 2026 the founder stated that “no patents have been filed” (S-38). That informal statement does not alter the documented provisional filing of 27 Feb 2025; its intended scope, and any later or current filing status, remain unconfirmed in this package and are counsel’s to establish from the docket. OPEN

4 · AGREEMENTS THAT BEAR ON IP OWNERSHIP

Document	What it says	Status
Intellectual Property Assignment Agreement — AEDAN LOOKING GLASS Inc. (“ALG”) and Ian McLean, Contractor, effective 16 Sept 2025	Assigns to the Company IP created “in connection with” services for it; own-time exclusion with a company-business / anticipated-research exception; independent-contractor relationship. Exhibit A (prior inventions excluded) names the title *“Quantum Vacuum Energy Harnessing Device, Antigravity and Exotic Propulsion”* and gives **no application number**; its final sentence is incomplete. The reviewed copy shows the company-side signature (Gary Griffes, President) and a **blank contractor signature line**.	OPEN — COUNSEL
Non-Disclosure Agreement — ALG and Ian McLean, 20–21 July 2025	Confidentiality obligations; creates no partnership, joint venture or employment. Signed by both parties on the reviewed copy.	LOCATED
Integrated Protective Rider (Sept 2025)	Located in the legal folder; reported as signed by Ian with the company line blank. Not independently reviewed for this page.	OPEN — COUNSEL

> Counsel’s review of the ALG agreement, its Exhibit A and the rider against the founder’s EnergyWave work is not evidenced in this package; it remains a question for counsel. Until it is answered, no document in this package states that the company’s intended IP is unencumbered — and none states that it is encumbered.

5 · QUESTIONS TO PUT TO COUNSEL

- **Formation (K&L Gates is handling the entity work — founder, 15 Oct 2026):** the four confirmations above; the 1988 entity; EIN and bank account in time for SAM.gov registration before the NSF deadline of 4 March 2027 (founder’s plan, 5 Oct 2026).
- **IP:** current docket for 63/763,998; the ALG agreement and Exhibit A; assignment of the energywave.ai domain and existing work product from the founder and McLean Companies on formation; invention record for a coversheet provisional.

- **Fundraising:** general solicitation (506(b) vs 506(c)); escrow mechanics; CFIUS / FIRRMA considerations for the raise.
- **Nonprofit:** GovThink formation vs exemption application vs determination; private-benefit and inurement mitigations; donation solicitation.
- **Security posture (AT memo §8):** trade-secret program; patent vs trade secret by bin and Invention Secrecy Act exposure; export classification and deemed exports; CPI / AT obligations under federal funding; NDAs and departure procedures by compartment.
- **People:** advisor agreements, consents to name, 409A before any option grant, Chip Story's ZPEPG conflict and IP boundary.

Sources: original Outlook messages — Majewski 29 Sept and 5 Oct 2026, Truong 5 Oct 2026 (M-19; locators in SOURCE_LEDGER.md); indexed provisional record (M-09); ALG agreements and GovThink package texts (M-17; Lyra legal-source review 14 Oct 2026); Wyoming registry and certificate (M-18); Entity_and_Counsel_Status_2026-09-18 and Counsel_Questions_Consolidated (M-03b); AT posture memo §8 (S-09). Secondary AI summaries (S-19; PB-2 §6) are not relied on. Founder decisions of 15 Oct 2026 (S-44).